

House File 639

S-3141

1 Amend House File 639, as amended, passed, and reprinted by
2 the House, as follows:

3 1. Page 1, by striking lines 1 and 2 and inserting:

4 <Section 1. Section 6A.21, Code 2025, is amended to read as
5 follows:

6 **6A.21 Condemnation of agricultural land — definitions.>**

7 2. Page 2, after line 17 by inserting:

8 <2. The limitation on the definition of public use,
9 public purpose, or public improvement does not apply to the
10 establishment, relocation, or improvement of a road pursuant
11 to [chapter 306](#), or to the establishment of a railway under the
12 supervision of the department of transportation as provided in
13 section 327C.2, or to an airport as defined in [section 328.1](#),
14 or to land acquired in order to replace or mitigate land used
15 in a road project when federal law requires replacement or
16 mitigation. This limitation also does not apply to utilities,
17 persons, companies, or corporations under the jurisdiction
18 of the Iowa utilities commission or to any other utility
19 conferred the right by statute to condemn private property or
20 to otherwise exercise the power of eminent domain, except to
21 the extent such purpose includes construction of hazardous
22 liquid pipelines for the transportation or transmission of
23 liquefied carbon dioxide or aboveground merchant lines. For
24 purposes of this subsection, "utility" means a public utility as
25 defined in section 306.46, subsection 2.>

26 3. Page 2, line 27, by striking <subsection> and inserting
27 <subsections>

28 4. Page 2, after line 32 by inserting:

29 <NEW SUBSECTION. 6. The following persons are entitled
30 as of right to intervene in any proceeding conducted by the
31 commission:

32 a. A member of the general assembly.

33 b. An elected county or city official.

34 c. Any resident with a minimally plausible interest in the
35 proceeding.>

1 5. Page 4, by striking lines 20 through 28.
2 6. Title page, by striking lines 1 through 8 and inserting
3 <An Act relating to public utilities, including requirements
4 for common carriers transporting hazardous liquids, public
5 use limitations, intervenors in contested cases and other
6 proceedings, utilities commission member attendance at
7 hearings and informational meetings, insurance requirements
8 for the granting of a hazardous liquid pipeline permit, and
9 permit, permit renewal, and operation limitations of pipelines
10 transporting liquefied carbon dioxide, and including effective
11 date and applicability provisions.>
12 7. By renumbering as necessary.

DOUG CAMPBELL

KEVIN ALONS

ROCKY DE WITT

DENNIS GUTH

MARK LOFGREN

MIKE PIKE

DAVID D. ROWLEY

SANDY SALMON

DAVE SIRES

JEFF TAYLOR

CHERIELYNN WESTRICH

JESSE GREEN